

Dinesh v. State of U.P. — enhanced demand relegated to clause 6.5

High Court of Judicature at Allahabad · Division Bench · 19 September 2017 · Writ-C No. 43972 of 2017 · **Writ disposed; petitioner directed to clause 6.5 before the Executive Engineer.**

HEADNOTE

A consumer's writ challenging recovery of an allegedly erroneous enhanced electricity demand was disposed without examining the bill. The Division Bench held that the petitioner should take recourse to clause 6.5 of the U.P. Electricity Supply Code, 2005, and directed the second respondent to examine the claim and pass an appropriate order within three weeks of presentation of a certified copy of the order.

FACTUAL SUMMARY

Dinesh petitioned the Allahabad High Court against recovery of electricity dues, contending that the enhanced amount was erroneous and that he had already served a legal notice on the concerned Executive Engineer. After hearing counsel for the petitioner and for the Electricity Department, the Division Bench declined to examine the demand on the writ side and pointed him to the Supply Code billing-objection machinery.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-forum

HOLDING

A writ challenging recovery of an allegedly erroneous enhanced electricity demand is not to be examined on the High Court side; the consumer is to take recourse to clause 6.5 of the U.P. Electricity Supply Code, 2005. The second respondent shall examine the claim on presentation of a certified copy of the order and pass an appropriate order within three weeks. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer's writ challenging recovery of an allegedly erroneous enhanced electricity demand was disposed without examining the bill. The Division Bench held that the petitioner should take recourse to clause 6.5 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ENHANCED ELECTRICITY DEMAND SOUGHT TO BE RECOVERED FROM THE PETITIONER WAS ERRONEOUS.

¶ 1